

****October 23, 2024****

****Sanction for Violation of GDPR****

The National Authority for the Supervision of Personal Data Processing completed an investigation in September 2024 at the operator Profi Rom Food Srl and found violations of the provisions of Article 5 paragraph (1) letter a) and paragraph (2) in relation to Article 6 paragraph (1), as well as violations of the provisions of Article 32 paragraph (1) letter b), Article 32 paragraph (2) and paragraph (4) of Regulation (EU) 2016/679.

As such, the operator was sanctioned with:

- a fine in the amount of 49,744 Ron (equivalent to 10,000 Euros) for the violation of the provisions of Article 5 paragraph (1) letter a) and paragraph (2) in relation to Article 6 paragraph (1) of Regulation (EU) 2016/679.
- a warning for the violation of the provisions of Article 32 paragraph (1) letter b), Article 32 paragraph (2) and paragraph (4) of Regulation (EU) 2016/679.

During the investigation conducted following a complaint, it was found that Profi Rom Food Srl transmitted copies of the identity cards of several employees of the operator to a company providing certain services for the operator, without having a legal basis.

This situation led to unauthorized access to personal data (name, surname, personal identification number, series and number of identity card, home address, gender, nationality, place of birth, and photo) contained in the identity cards of the aforementioned individuals.

As such, Profi Rom Food Srl was sanctioned with a fine for the violation of the provisions of Article 5 paragraph (1) letter a) and paragraph (2) in relation to Article 6 paragraph (1) of Regulation (EU) 2016/679.

On the other hand, following the notification by Profi Rom Food Srl of a personal data security breach under Regulation (EU) 2016/679, a warning was issued for the violation of the provisions of Article 32 paragraph (1) letter b), Article 32 paragraph (2) and paragraph (4) of the Regulation.

During the investigation, it was found that an employee of the operator captured with a personal phone, from the monitor belonging to Profi Rom Food Srl, video recordings that were subsequently transmitted among the employees of the operator using the "WhatsApp" Messenger application. The situation created led to the unauthorized disclosure in the public space of personal data (image) of certain individuals, thus violating the provisions of Article 32 paragraph (1) letter b), Article 32 paragraph (2) and paragraph (4) of Regulation (EU) 2016/679.

Additionally, during the investigation, it was found that the operator did not take measures to ensure that any person acting under its authority and having access to personal data only processes them at the request of the operator.

Furthermore, under the provisions of Article 58 paragraph (2) letter b) of Regulation (EU) 2016/679, the following corrective measures were imposed on the operator:

- to process personal data at the level of the operator for individuals designated to participate in vocational training courses, in compliance with the rules and principles provided for in Articles 5 and 6 of Regulation (EU) 2016/679;
- to implement appropriate and effective technical and organizational measures that limit access to images and video recordings only to authorized or designated persons by the operator's decision and only in the event of incidents related to the purpose of installing these video surveillance cameras, in relation to the purpose of processing, in compliance with the applicable legislation and Regulation (EU) 2016/679;
- to regularly train individuals who process personal data under the authority of Profi Rom Food Srl.

****Legal and Communication Department****

****A.N.S.P.D.C.P****